

25LBCV02174 25LBCV02174

County: los-angeles

Division: Civil Law and Motion

Department: S28

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Case Number: 25LBCV02174 Hearing Date: July 9, 2026 Dept: S28

BACKGROUND

On May 5, 2024,

Plaintiff presented to Defendant Exer Urgent Care with “severe neurological symptoms,” including “severe neck strain, dizziness, blurred vision, imbalance, nausea, and confusion” which Plaintiff maintains constituted a potential stroke. Plaintiff was examined by Defendant Michelle Fukuda, PA, who Plaintiff alleges insufficiently diagnosed Plaintiff in failing to recommend an “emergency referral.”

On August 4, 2025, Plaintiff in pro per filed a complaint for medical malpractice.

Defendants

answered the complaint on January 26, 2026.

On May 19, 2026, Defendants

filed a motion for to compel deposition of Plaintiff. The motion remains unopposed. The court filing system shows no reply.

DISCUSSION

Applicable Law

A party may file a

motion to compel deposition upon a non-appearance of the noticed party. “If, after service of a deposition notice, a party to the action ... without having served a valid objection ... fails to appear for examination, or to proceed with

it ... the party giving the notice may move for an order compelling the deponent's attendance and testimony..." (Code Civ. Proc., §2025.450, subd. (a).) A party must object to a deposition no less than three calendar days before deposition date. (Code Civ. Proc., §2025.410, subd. (b).)

Self-Represented Plaintiff

"Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party.

... 'Trial judges must acknowledge that in propria persona litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' (Citation). When one party has counsel and the other does not, the trial court 'should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court...

[S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.'" (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

Analysis

On January 23, 2026, Defendants served Plaintiff with a Notice of Deposition and Request for Production of Documents at Deposition for April 22, 2026. [Declaration of Kyle Greenway, ¶ 4, Ex. C.] Plaintiff requested certain discovery extensions, but the deposition date appears unchanged and remotely scheduled. [Id., Ex. H.] Meanwhile, on April 16, 2026, the court denied Plaintiff's motion for "Disability Accommodation," and instructed the parties to further meet and confer. [April 16, 2026, Minute Order.] Counsel refused any further extensions. [Greenway Decl., Ex. I.]

Plaintiff failed

to appear for the deposition on-line, and informed Defendants of the inability to sit for a deposition due to Plaintiff's medical condition. [Id., Ex. I.] Plaintiff still offered to further meet and confer while maintaining an indefinite ability to commit to any timeframe. [Id., Ex. J.]

The motion

complies with the procedural requirements. Plaintiff brought the subject action, yet refuses to cooperate in the participation of the legally allowed and sought after deposition. After more than six months from service of the notice, any potential deposition date remains apparently undetermined. All resistance appears purely due to the lack of cooperation by Plaintiff in relying on the unspecified medical condition. Plaintiff otherwise offers no other means to meaningfully substantive means to prepare the case for trial, currently set for January 25, 2027. While the court in no way discounts the medical condition of Plaintiff, a party cannot prosecute an action while withholding all information relevant to adjudicating the case.

The court

therefore grants the motion to compel the deposition within the next 30 days. The parties are ordered to meet and confer on a new deposition date no later than 5 days from the date of this order with the deposition to be completed no later than 25 days from the date of the lapse of the 5 day meet and confer period. If the parties are unable to agree, Defendant may unilaterally pick a date, attempt to conduct the deposition, and take a subsequent notice of non-appearance, if applicable. If Plaintiff fails to appear again after the setting of the date either voluntarily agreed upon or unilaterally set by Defendant, any subsequent non-appearance may constitute grounds for an evidentiary, issue or even terminating sanction (dismissal of the action) against Plaintiff. (Code Civ. Proc., § 2025.450, subd. (h).)

Sanctions

The Court defers

the imposition of sanctions against Plaintiff given the circumstances, including a potential motion for terminating sanctions. Any subsequent motion may include a request for monetary sanctions as well to compensate for the time spent attempting to coordinate and the subsequent deposition efforts, including the costs for the certificate of non-appearance.

CONCLUSION

Defendants Exer Urgent Care and

Michelle Fukuda, PA's Motion to Compel the Deposition of Plaintiff is GRANTED.

Defendants request for

sanctions is DENIED.